

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
I	GENERAL PROVISIONS	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
I.1	Object of the Act	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
I.1.1	Section 1	The purpose of this Act is to define the basic rules for the processing of data in the areas covered by its scope in order to ensure that data controllers respect the privacy of natural persons and that the free flow of data and the transparency of public affairs are achieved by enforcing the right to access and disseminate data of public interest and data made public in the public interest.	Functional	No Relationship	N/A	N/A	N/A	0	
I.2	Scope	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
I.2.2	Section 2	The scope of this Act – as defined in subsequent paragraphs with regard to personal data – covers all data processing that concerns personal data and data of public interest or data made public in the public interest. For the processing of personal data falling within the scope of Regulation (EU) 2016/679 (GDPR), the General Data Protection Regulation shall apply in the areas specified by this Act.	Functional	No Relationship	N/A	N/A	N/A	0	
I.3	Definitions	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
I.3.3	Section 3	For the purposes of this Act the following definitions apply: data subject means any identified or identifiable natural person based on any information; personal data means any information relating to the data subject; special category data includes data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, trade union membership, genetic data, biometric data, health data, or data concerning a natural person's sex life or sexual orientation; data processing means any operation performed on data; controller means the natural or legal person who determines the purposes and means of data processing; processor means a natural or legal person processing data on behalf of the controller.	Functional	No Relationship	N/A	N/A	N/A	0	
II	PROTECTION OF PERSONAL DATA	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.4	Principles of data processing	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.4.4	Section 4	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.4.4(1)	Section 4	Personal data may be processed only for specified and explicit purposes, where it is necessary for the exercising of certain rights and fulfillment of obligations. The purpose of processing must be satisfied in all stages of data processing operations; recording of personal data shall be done under the principle of lawfulness and fairness.	Functional	Intersects With	Restrict Collection, Processing & Sharing To Identified Purpose	PRI-04	Mechanisms exist to minimize the collection, processing and/or sharing of Personal Data (PD) to only what is adequate, relevant and limited to the purposes identified in the data privacy notice, including protections against collecting PD from minors without appropriate parental or legal guardian consent.	5	
II.4.4(1)	Section 4	Personal data may be processed only for specified and explicit purposes, where it is necessary for the exercising of certain rights and fulfillment of obligations. The purpose of processing must be satisfied in all stages of data processing operations; recording of personal data shall be done under the principle of lawfulness and fairness.	Functional	Intersects With	Authority To Collect, Process, Store & Share Personal Data (PD)	PRI-04.1	Mechanisms exist to determine and document the legal authority that permits the organization to collect, receive, process, store, transmit, share, update and/or dispose Personal Data (PD), either generally or in support of a specific business process.	8	
II.4.4(2)	Section 4	The personal data processed must be essential for the purpose for which it was recorded, and it must be suitable to achieve that purpose. Personal data may be processed to the extent and for the duration necessary to achieve its purpose.	Functional	Intersects With	Restrict Collection, Processing & Sharing To Identified Purpose	PRI-04	Mechanisms exist to minimize the collection, processing and/or sharing of Personal Data (PD) to only what is adequate, relevant and limited to the purposes identified in the data privacy notice, including protections against collecting PD from minors without appropriate parental or legal guardian consent.	5	
II.4.4(2)	Section 4	The personal data processed must be essential for the purpose for which it was recorded, and it must be suitable to achieve that purpose. Personal data may be processed to the extent and for the duration necessary to achieve its purpose.	Functional	Intersects With	Authority To Collect, Process, Store & Share Personal Data (PD)	PRI-04.1	Mechanisms exist to determine and document the legal authority that permits the organization to collect, receive, process, store, transmit, share, update and/or dispose Personal Data (PD), either generally or in support of a specific business process.	8	
II.4.4(3)	Section 4	In the course of data processing, the data in question shall be treated as personal as long as the data subject remains identifiable through it. The data subject shall - in particular - be considered identifiable if the data controller is in possession of the technical requirements which are necessary for identification.	Functional	Intersects With	Data & Asset Classification	DCH-02	Mechanisms exist to ensure data and assets are categorized in accordance with applicable statutory, regulatory and contractual requirements.	5	
II.4.4(3)	Section 4	In the course of data processing, the data in question shall be treated as personal as long as the data subject remains identifiable through it. The data controller is in possession of the technical requirements which are necessary for identification.	Functional	Intersects With	Authority To Collect, Process, Store & Share Personal Data (PD)	PRI-04.1	Mechanisms exist to determine and document the legal authority that permits the organization to collect, receive, process, store, transmit, share, update and/or dispose Personal Data (PD), either generally or in support of a specific business process.	8	
II.4.4(4)	Section 4	The accuracy and completeness, and - if deemed necessary in the light of the aim of processing - the up-to-dateness of the data must be provided for throughout the processing operation, and shall be kept in a way to permit identification of the data subject for no longer than is necessary for the purposes for which the data were recorded.	Functional	Intersects With	Personal Data (PD) Accuracy & Integrity	PRI-05.2	Mechanisms exist to ensure the accuracy and relevance of Personal Data (PD) throughout the information lifecycle by: (1) Keeping PD up-to-date; and (2) Remediating identified inaccuracies, as necessary.	5	
II.4.4(5)	Section 4	Processing of personal data shall be deemed lawful and fair if, for the objective of ensuring the right to freedom of expression of the data subject, the person, wishing to find out the opinion of the data subject, calls on him/her at his domicile or place of residence provided that the data subject's personal data are processed in compliance with this Act and the contacting is not intended for business purposes. This contacting is not permitted to happen on legal holiday as determined by the Labour Code.4	Functional	Intersects With	Authority To Collect, Process, Store & Share Personal Data (PD)	PRI-04.1	Mechanisms exist to determine and document the legal authority that permits the organization to collect, receive, process, store, transmit, share, update and/or dispose Personal Data (PD), either generally or in support of a specific business process.	8	
II.5	Legal basis of data processing	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.5.5	Section 5	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.5.5(1)	Section 5	Personal data may be processed under the following circumstances:	Functional	No Relationship	N/A	N/A	N/A	0	
II.5.5(1)(a)	Section 5	when the data subject has given his consent, or	Functional	Intersects With	Data Subject Consent	PRI-03	Mechanisms exist to enable data subjects to authorize the collection, receipt, processing, storage, transmission, sharing, updating and/or disposal of their Personal Data (PD), where the data subject is provided, prior to collection, with: (1) Plain language explaining the potential data privacy risks of the authorization; (2) A means to decline the authorization; and (3) Necessary choice and consent-related criteria required by applicable statutory, regulatory and contractual obligations.	8	
II.5.5(1)(b)	Section 5	when processing is necessary as decreed by law or by a local authority based on authorization conferred by law concerning specific data defined therein for the performance of a task carried out in the public interest (hereinafter referred to as "mandatory processing").	Functional	Intersects With	Authority To Collect, Process, Store & Share Personal Data (PD)	PRI-04.1	Mechanisms exist to determine and document the legal authority that permits the organization to collect, receive, process, store, transmit, share, update and/or dispose Personal Data (PD), either generally or in support of a specific business process.	8	
II.5.5(2)	Section 5	Special data may be processed according to Section 6, and under the following circumstances:	Functional	No Relationship	N/A	N/A	N/A	0	
II.5.5(2)(a)	Section 5	when the data subject has given his consent in writing, or	Functional	Intersects With	Data Subject Consent	PRI-03	Mechanisms exist to enable data subjects to authorize the collection, receipt, processing, storage, transmission, sharing, updating and/or disposal of their Personal Data (PD), where the data subject is provided, prior to collection, with: (1) Plain language explaining the potential data privacy risks of the authorization; (2) A means to decline the authorization; and (3) Necessary choice and consent-related criteria required by applicable statutory, regulatory and contractual obligations.	8	
II.5.5(2)(b)	Section 5	when processing is necessary for the implementation of an international agreement promulgated by an act concerning the data under Point 3.a) of Section 3, or if prescribed by law in connection with the enforcement of fundamental rights afforded by the Fundamental Law, or for reasons of national security or national defence, or law enforcement purposes for the prevention or prosecution of criminal activities, or	Functional	Intersects With	Statutory, Regulatory & Contractual Compliance	CPL-01	Mechanisms exist to facilitate the identification and implementation of relevant statutory, regulatory and contractual controls.	8	

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II.5.5(2)(b)	Section 5	when processing is necessary for the implementation of an international agreement promulgated by an act concerning the data under Point 3.a) of Section 3, or if prescribed by law in connection with the enforcement of fundamental rights afforded by the Fundamental Law, or for reasons of national security or national defence, or law enforcement purposes for the prevention or prosecution of criminal activities, or	Functional	Intersects With	Authority To Collect, Process, Store & Share Personal Data (PD)	PRI-04.1	Mechanisms exist to determine and document the legal authority that permits the organization to collect, receive, process, store, transmit, share, update and/or dispose Personal Data (PD), either generally or in support of a specific business process.	8	
II.5.5(2)(c)	Section 5	when processing is necessary for the performance of a task carried out in the public interest concerning the data under Point 3.b) of Section 3.	Functional	Intersects With	Authority To Collect, Process, Store & Share Personal Data (PD)	PRI-04.1	Mechanisms exist to determine and document the legal authority that permits the organization to collect, receive, process, store, transmit, share, update and/or dispose Personal Data (PD), either generally or in support of a specific business process.	8	
II.5.5(3)	Section 5	Where data processing is mandatory, the type of data, the purpose and the conditions of processing, access to such data, the duration of the proposed processing operation, and the controller shall be specified by the statute or municipal decree in which it is ordered.	Functional	Intersects With	Authority To Collect, Process, Store & Share Personal Data (PD)	PRI-04.1	Mechanisms exist to determine and document the legal authority that permits the organization to collect, receive, process, store, transmit, share, update and/or dispose Personal Data (PD), either generally or in support of a specific business process.	5	
II.5.5(4)	Section 5	Personal data that concern criminal offenses and are being processed for the purposes of preventing, investigating, detecting and prosecuting criminal offenses and data files containing information pertaining to misdemeanour cases, civil cases and non-contentious proceedings may only be processed by central or local government authorities.	Functional	Intersects With	Authority To Collect, Process, Store & Share Personal Data (PD)	PRI-04.1	Mechanisms exist to determine and document the legal authority that permits the organization to collect, receive, process, store, transmit, share, update and/or dispose Personal Data (PD), either generally or in support of a specific business process.	5	
II.5.6	Section 6	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.5.6(1)	Section 6	Personal data may be processed also if obtaining the data subject's consent is impossible or it would give rise to disproportionate costs, and the processing of personal data is necessary.	Functional	No Relationship	N/A	N/A	N/A	0	
II.5.6(1)(a)	Section 6	for compliance with a legal obligation pertaining to the data controller, or	Functional	Intersects With	Statutory, Regulatory & Contractual Compliance	CPL-01	Mechanisms exist to facilitate the identification and implementation of relevant statutory, regulatory and contractual controls.	8	
II.5.6(1)(a)	Section 6	for compliance with a legal obligation pertaining to the data controller, or	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	8	
II.5.6(1)(b)	Section 6	for the purposes of the legitimate interests pursued by the controller or by a third party, and enforcing these interests is considered proportionate to the limitation of the right for the protection of personal data.	Functional	Intersects With	Authority To Collect, Process, Store & Share Personal Data (PD)	PRI-04.1	Mechanisms exist to determine and document the legal authority that permits the organization to collect, receive, process, store, transmit, share, update and/or dispose Personal Data (PD), either generally or in support of a specific business process.	8	
II.5.6(2)	Section 6	If the data subject is unable to give his consent on account of lacking legal capacity or for any other reason beyond his control, the processing of his personal data is allowed to the extent necessary and for the length of time such reasons persist, to protect the vital interests of the data subject or of another person, or in order to prevent or avert an imminent danger posing a threat to the lives, physical integrity or property of persons.	Functional	Intersects With	Authorized Agent	PRI-03.6	Mechanisms exist to allow data subjects to authorize another person or entity (e.g., authorized agent, proxy, etc.), acting on the data subject's behalf, to make Personal Data (PD) processing decisions.	8	
II.5.6(3)	Section 6	The statement of consent of minors over the age of sixteen shall be considered valid without the permission or subsequent approval of their legal representative.	Functional	Intersects With	Data Subject Consent	PRI-03	Mechanisms exist to enable data subjects to authorize the collection, receipt, processing, storage, transmission, sharing, updating and/or disposal of their Personal Data (PD), where the data subject is provided, prior to collection, with: (1) Plain language explaining the potential data privacy risks of the authorization; (2) A means to decline the authorization; and (3) Necessary choice and consent-related criteria required by applicable statutory, regulatory and contractual obligations.	8	
II.5.6(3)	Section 6	The statement of consent of minors over the age of sixteen shall be considered valid without the permission or subsequent approval of their legal representative.	Functional	Intersects With	Prohibition of Selling, Processing and/or Sharing Personal Data (PD)	PRI-03.3	Mechanisms exist to prevent the sale, processing and/or sharing of Personal Data (PD) when: (1) Instructed by the data subject; or (2) The data subject is a minor, where selling and/or sharing PD is legally prohibited.	8	
II.5.6(4)	Section 6	Where processing under consent is necessary for the performance of a contract with the controller in writing, the contract shall contain all information that is to be made available to the data subject under this Act in connection with the processing of personal data, such as the description of the data involved, the duration of the proposed processing operation, the purpose of processing, the transmission of data, the recipients and the use of a data processor. The contract must clearly indicate the data subject's signature and explicit consent for having his data processed as stipulated in the contract.	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	8	
II.5.6(4)	Section 6	Where processing under consent is necessary for the performance of a contract with the controller in writing, the contract shall contain all information that is to be made available to the data subject under this Act in connection with the processing of personal data, such as the description of the data involved, the duration of the proposed processing operation, the purpose of processing, the transmission of data, the recipients and the use of a data processor. The contract must clearly indicate the data subject's signature and explicit consent for having his data processed as stipulated in the contract.	Functional	Intersects With	Data Subject Consent	PRI-03	Mechanisms exist to enable data subjects to authorize the collection, receipt, processing, storage, transmission, sharing, updating and/or disposal of their Personal Data (PD), where the data subject is provided, prior to collection, with: (1) Plain language explaining the potential data privacy risks of the authorization; (2) A means to decline the authorization; and (3) Necessary choice and consent-related criteria required by applicable statutory, regulatory and contractual obligations.	8	
II.5.6(5)	Section 6	Where personal data is recorded under the data subject's consent, the controller shall - unless otherwise provided for by law - be able to process the data recorded where this is necessary.	Functional	No Relationship	N/A	N/A	N/A	0	
II.5.6(5)(a)	Section 6	for compliance with a legal obligation pertaining to the controller, or	Functional	Intersects With	Statutory, Regulatory & Contractual Compliance	CPL-01	Mechanisms exist to facilitate the identification and implementation of relevant statutory, regulatory and contractual controls.	5	
II.5.6(5)(a)	Section 6	for compliance with a legal obligation pertaining to the controller, or	Functional	Intersects With	Authority To Collect, Process, Store & Share Personal Data (PD)	PRI-04.1	Mechanisms exist to determine and document the legal authority that permits the organization to collect, receive, process, store, transmit, share, update and/or dispose Personal Data (PD), either generally or in support of a specific business process.	5	
II.5.6(5)(b)	Section 6	for the purposes of legitimate interests pursued by the controller or by a third party, if enforcing these interests is considered proportionate to the limitation of the right for the protection of personal data, without the data subject's further consent, or after the data subject having withdrawn his consent.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
II.5.6(6)	Section 6	In court proceedings and administrative proceedings of the authorities launched upon the data subject's request or initiative, as regards the personal data necessary to carry out the proceedings, and in other cases opened at the data subject's request, as regards the personal data he has supplied, the data subject's consent shall be deemed to have been granted.	Functional	No Relationship	N/A	N/A	N/A	0	
II.5.6(7)	Section 6	The consent of the data subject shall be considered granted in connection with any personal data he has conveyed to the public or has supplied for dissemination when making a public appearance.	Functional	No Relationship	N/A	N/A	N/A	0	
II.5.6(8)	Section 6	If there is any doubt, it is to be presumed that the data subject failed to provide his consent.	Functional	No Relationship	N/A	N/A	N/A	0	
II.6	Data security requirement	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.6.7	Section 7	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.6.7(1)	Section 7	Controllers shall make arrangements for and carry out data processing operations in a way so as to ensure full respect for the right to privacy of data subjects in due compliance with the provisions of this Act and other regulations on data protection.	Functional	Intersects With	Data Privacy Program	PRI-01	Mechanisms exist to facilitate the implementation and operation of data protection controls throughout the data lifecycle to ensure all forms of Personal Data (PD) are processed lawfully, fairly and transparently.	5	

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II.6.7(1)	Section 7	Controllers shall make arrangements for and carry out data processing operations in a way so as to ensure full respect for the right to privacy of data subjects in due compliance with the provisions of this Act and other regulations on data protection.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	8	
II.6.7(2)	Section 7	Controllers, and within their sphere of competence, data processors must implement adequate safeguards and appropriate technical and organizational measures to protect personal data, as well as adequate procedural rules to enforce the provisions of this Act and other regulations concerning confidentiality and security of data processing.	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	8	
II.6.7(3)	Section 7	Data must be protected by means of suitable measures against unauthorized access, alteration, transmission, public disclosure, deletion or destruction, as well as damage and accidental loss, and to ensure that stored data cannot be corrupted and rendered inaccessible due to any changes in or modification of the applied technique.	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
II.6.7(4)	Section 7	For the protection of data sets stored in different electronic filing systems, suitable technical solutions shall be introduced to prevent - unless this is permitted by law - the interconnection of data stored in these filing systems and the identification of the data subjects.	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
II.6.7(5)	Section 7	In respect of automated personal data processing, data controllers and processors shall implement additional measures designed to: prevent the unauthorized entry of data;	Functional	No Relationship	N/A	N/A	N/A	0	
II.6.7(5)(a)	Section 7	prevent the use of automated data-processing systems by unauthorized persons using data transfer devices;	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
II.6.7(5)(b)	Section 7	ensure that it is possible to verify and establish to which bodies personal data have been or may be transmitted or made available using data transfer devices;	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	8	
II.6.7(5)(c)	Section 7	ensure that it is possible to verify and establish which personal data have been entered into automated data-processing systems and when and by whom the data were input;	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	8	
II.6.7(5)(d)	Section 7	ensure that installed systems may, in case of malfunctions, be restored; and	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
II.6.7(5)(e)	Section 7	ensure that faults emerging in automated data-processing systems is reported.	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
II.6.7(6)	Section 7	In determining the measures to ensure security of processing, data controllers and processors shall proceed taking into account the latest technical development and the state of the art of their implementation. Where alternate data processing solutions are available, the one selected shall ensure the highest level of protection of personal data, except if this would entail unreasonable hardship for the data controller.	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	8	
II.7	Data transfer to other countries	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.7.8	Section 8	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.7.8(1)	Section 8	Personal data may be transmitted by a data controller covered by this Act to a data controller or processor operating in a third country, or may be transferred to a data controller or processor operating in a third country if:	Functional	No Relationship	N/A	N/A	N/A	0	
II.7.8(1)(a)	Section 8	the data subject has given his explicit consent, or	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	8	
II.7.8(1)(a)	Section 8	the data subject has given his explicit consent, or	Functional	Intersects With	Data Subject Consent	PRI-03	Mechanisms exist to enable data subjects to authorize the collection, receipt, processing, storage, transmission, sharing, updating and/or disposal of their Personal Data (PD), where the data subject is provided, prior to collection, with: (1) Plain language explaining the potential data privacy risks of the authorization; (2) A means to decline the authorization; and (3) Necessary choice and consent-related criteria required by applicable statutory, regulatory and contractual obligations.	8	
II.7.8(1)(b)	Section 8	the conditions laid down in Section 5 and/or Section 6 for data processing are satisfied and - save where Subsection (2) of Section 6 applies - the adequate level of protection of the personal data have been ensured in the third country during the course of the control and processing of the data transferred.	Functional	Intersects With	Binding Corporate Rules (BCR)	PRI-01.5	Mechanisms exist to implement and manage Binding Corporate Rules (BCR) (e.g., data sharing agreement) to legally-bind all parties engaged in a joint economic activity that contractually states enforceable rights on data subjects with regard to the processing of their personal data.	8	
II.7.8(1)(b)	Section 8	the conditions laid down in Section 5 and/or Section 6 for data processing are satisfied and - save where Subsection (2) of Section 6 applies - the adequate level of protection of the personal data have been ensured in the third country during the course of the control and processing of the data transferred.	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	8	
II.7.8(1)(b)	Section 8	the conditions laid down in Section 5 and/or Section 6 for data processing are satisfied and - save where Subsection (2) of Section 6 applies - the adequate level of protection of the personal data have been ensured in the third country during the course of the control and processing of the data transferred.	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	8	
II.7.8(2)	Section 8	Adequate level of protection of personal data is ensured should:	Functional	No Relationship	N/A	N/A	N/A	0	
II.7.8(2)(a)	Section 8	this be stated in a binding legal act of the European Union, or	Functional	No Relationship	N/A	N/A	N/A	0	
II.7.8(2)(b)	Section 8	there is an international agreement between the third country and Hungary containing guarantees for the rights of data subjects referred to in Section 14, their rights to remedies, and for the independent supervision and control of data control and data processing operations.	Functional	No Relationship	N/A	N/A	N/A	0	
II.7.8(3)	Section 8	Personal data may be transferred to third countries in the interest of the implementation of an international agreement on international legal aid, exchange of information in tax matters and on double taxation, for the purpose and with the contents specified in the international agreement, also in the absence of the conditions specified in Subsection (2).	Functional	No Relationship	N/A	N/A	N/A	0	
II.7.8(4)	Section 8	Transfer of data to EEA Member States shall be considered as if the transmission took place within the territory of Hungary.	Functional	No Relationship	N/A	N/A	N/A	0	
II.8	Restrictions to data processing	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.8.9	Section 9	N/A	Functional	No Relationship	N/A	N/A	N/A	0	

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II.8.9(1)	Section 9	Where personal data is transmitted under this Act and in accordance with international agreement or a binding legal act of the European Union, and the transmitting data controller indicates to the recipient at the time of transmission of the personal data: (hereinafter referred to collectively as "processing restrictions"), the recipient of such personal data (hereinafter referred to as "data recipient") shall process the personal data to the extent and by way of the means stipulated in the processing restrictions, and shall ensure the data subject's rights in line with the processing restrictions.	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	8	
II.8.9(1)(a)	Section 9	the purposes for which it can use those data,	Functional	Intersects With	Purpose Specification	PRI-02.1	Mechanisms exist to ensure data privacy notices identify the purpose(s) for which Personal Data (PD) is collected, received, processed, stored, transmitted and/or shared.	5	
II.8.9(1)(b)	Section 9	the time limits for the retention of data,	Functional	Intersects With	Personal Data (PD) Retention & Disposal	PRI-05	Mechanisms exist to: (1) Retain Personal Data (PD), including metadata, for an organization-defined time period to fulfill the purpose(s) identified in the notice or as required by law; (2) Dispose of, destroys, erases, and/or anonymizes the PD, regardless of the method of storage; and (3) Use organization-defined techniques or methods to ensure secure deletion or destruction of PD (including originals, copies and archived records).	5	
II.8.9(1)(c)	Section 9	the potential recipients of the data,	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
II.8.9(1)(c)	Section 9	the potential recipients of the data,	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	8	
II.8.9(1)(d)	Section 9	the restrictions of the data subject's rights ensured under this Act, or	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
II.8.9(1)(e)	Section 9	specific other processing restrictions that may apply,	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
II.8.9(2)	Section 9	The data recipient shall be allowed to process personal data irrespective of restrictions and may enforce the data subject's rights provided a prior consent has been granted by him/her to the transmitting data controller.	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	8	
II.8.9(3)	Section 9	Where personal data is transmitted under this Act and in accordance with international agreement or a binding legal act of the European Union, the transmitting data controller shall indicate to the recipient at the time of transmission the processing restrictions applicable.	Functional	Intersects With	Binding Corporate Rules (BCR)	PRI-01.5	Mechanisms exist to implement and manage Binding Corporate Rules (BCR) (e.g., data sharing agreement) to legally-bind all parties engaged in a joint economic activity that contractually states enforceable rights on data subjects with regard to the processing of their personal data.	8	
II.8.9(3)	Section 9	Where personal data is transmitted under this Act and in accordance with international agreement or a binding legal act of the European Union, the transmitting data controller shall indicate to the recipient at the time of transmission the processing restrictions applicable.	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	8	
II.8.9(3)	Section 9	Where personal data is transmitted under this Act and in accordance with international agreement or a binding legal act of the European Union, the transmitting data controller shall indicate to the recipient at the time of transmission the processing restrictions applicable.	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	8	
II.8.9(4)	Section 9	The data controller shall be able to give the consent referred to in Subsection (2) if it is not contrary to any legal provision applicable to legal subjects falling within the scope of jurisdiction of Hungary.	Functional	Intersects With	Data Subject Consent	PRI-03	Mechanisms exist to enable data subjects to authorize the collection, receipt, processing, storage, transmission, sharing, updating and/or disposal of their Personal Data (PD), where the data subject is provided, prior to collection, with: (1) Plain language explaining the potential data privacy risks of the authorization; (2) A means to decline the authorization; and (3) Necessary choice and consent-related criteria required by applicable statutory, regulatory and contractual obligations.	8	
II.8.9(5)	Section 9	The data recipient shall – upon request – inform the transmitting data controller concerning the use of the personal data received.	Functional	Intersects With	Binding Corporate Rules (BCR)	PRI-01.5	Mechanisms exist to implement and manage Binding Corporate Rules (BCR) (e.g., data sharing agreement) to legally-bind all parties engaged in a joint economic activity that contractually states enforceable rights on data subjects with regard to the processing of their personal data.	5	
II.8.9(5)	Section 9	The data recipient shall – upon request – inform the transmitting data controller concerning the use of the personal data received.	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
II.8.9(5)	Section 9	The data recipient shall – upon request – inform the transmitting data controller concerning the use of the personal data received.	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
II.9	Data process	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.9.10	Section 10	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.9.10(1)	Section 10	The rights and obligations of data processors arising in connection with the process of personal data shall be determined by the data controller within the scope specified by this Act and other legislation on data processing. The data controller shall be held liable for the legitimacy of his instructions.	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
II.9.10(2)	Section 10	The data processor shall be permitted to subcontract another data processor according to the notice of the data controller.6	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
II.9.10(3)	Section 10	The data processor may not make any decision on the merits of data processing and shall process any and all data entrusted to him solely as instructed by the controller; the processor shall not engage in data process for his own purposes and shall store and safeguard personal data according to the instructions of the controller.	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
II.9.10(4)	Section 10	Contracts for the process of data must be made in writing. Any company that is interested in the business activity for which personal data is used may not be contracted for the process of such data.	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
II.10	Decision adopted by means of automated data-process systems	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.10.11	Section 11	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.10.11(1)	Section 11	A decision which is based solely on automated process of data intended to evaluate certain personal characteristics relating to the data subject shall	Functional	No Relationship	N/A	N/A	N/A	0	
II.10.11(1)(a)	Section 11	it is taken in the course of the entering into or performance of a contract, provided that the request for entering into or performance of the contract was lodged by the data subject, or	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary	8	
II.10.11(1)(a)	Section 11	it is taken in the course of the entering into or performance of a contract, provided that the request for entering into or performance of the contract was lodged by the data subject, or	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	8	
II.10.11(1)(b)	Section 11	authorized by a law which also lays down measures to safeguard the data subject's legitimate interests.	Functional	Intersects With	Authority To Collect, Process, Store & Share Personal Data (PD)	PRI-04.1	Mechanisms exist to determine and document the legal authority that permits the organization to collect, receive, process, store, transmit, share, update and/or dispose Personal Data (PD), either generally or in support of a specific business process.	5	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
II.10.11(2)	Section 11	In connection with decisions adopted by means of automated data-process systems, the data subject shall, at his request, be informed of the method that is used and its essence, and shall be given the opportunity to express his opinion.	Functional	Intersects With	Automated Decision-Making Technology (ADMT) For Data Subject Actions	PRI-19	Mechanisms exist to ensure data subject actions utilizing Automated Decision-Making Technology (ADMT) where computation replaces, or substantially replaces, human decisionmaking, conforms with all applicable statutory, regulatory and/or contractual obligations.	8	
II.11	Processing personal data relating to scientific research	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.11.12	Section 12	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.11.12(1)	Section 12	Personal data recorded for scientific reasons must be used only for scientific research projects.	Functional	Intersects With	Restrict Collection, Processing & Sharing To	PRI-04	Mechanisms exist to minimize the collection, processing and/or sharing of Personal Data (PD) to only what is adequate, relevant and	5	
II.11.12(1)	Section 12	Personal data recorded for scientific reasons must be used only for scientific research projects.	Functional	Intersects With	Authority To Collect, Process, Store & Share Personal Data (PD)	PRI-04.1	Mechanisms exist to determine and document the legal authority that permits the organization to collect, receive, process, store, transmit, share, update and/or dispose Personal Data (PD), either generally or in support of a specific business process.	5	
II.11.12(2)	Section 12	Personal data attributed to the data subject shall be made permanently anonymous when they are no longer required for scientific purposes. Until this is done, personal data that can attributed to an identified or identifiable natural person shall be stored separately. Such data may be	Functional	Intersects With	De-Identification (Anonymization)	DCH-23	Mechanisms exist to anonymize data by removing Personal Data (PD) from datasets.	5	
II.11.12(3)	Section 12	An organization or person conducting scientific research shall be allowed to disseminate personal data only if:	Functional	No Relationship	N/A	N/A	N/A	0	
II.11.12(3)(a)	Section 12	the data subject has given his consent, or	Functional	Intersects With	Data Subject Consent	PRI-03	Mechanisms exist to enable data subjects to authorize the collection, receipt, processing, storage, transmission, sharing, updating and/or	8	
II.11.12(3)(a)	Section 12	the data subject has given his consent, or	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	8	
II.11.12(3)(b)	Section 12	it is necessary to demonstrate the findings of research in connection with historical events.	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	8	
II.12	Use of personal data for statistical purposes	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.12.13	Section 13	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.12.13(1)	Section 13	Unless otherwise provided for by law, the Központi Statisztikai Hivatal (Hungarian Central Statistical Office) shall be entitled to receive for	Functional	No Relationship	N/A	N/A	N/A	0	
II.12.13(2)	Section 13	Unless otherwise provided for by law, personal data recorded, received or processed for statistical purposes may only be used for statistical purposes. The detailed regulations governing processing operations involving personal data are defined in specific other act.	Functional	Intersects With	Restrict Collection, Processing & Sharing To Identified Purpose	PRI-04	Mechanisms exist to minimize the collection, processing and/or sharing of Personal Data (PD) to only what is adequate, relevant and limited to the purposes identified in the data privacy notice, including protections against collecting PD from minors without appropriate parental or legal guardian consent.	5	
II.12.13(2)	Section 13	Unless otherwise provided for by law, personal data recorded, received or processed for statistical purposes may only be used for statistical purposes. The detailed regulations governing processing operations involving personal data are defined in specific other act.	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and	5	
II.13	Rights of data subjects; enforcement	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.13.14	Section 14	The data subject may request from the data controller:	Functional	No Relationship	N/A	N/A	N/A	0	
II.13.14(a)	Section 14	information on his personal data being processed,	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and	8	
II.13.14(b)	Section 14	the rectification of his personal data, and	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	8	
II.13.14(c)	Section 14	the erasure or blocking of his personal data, save where processing is rendered mandatory.	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	8	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
IL.13.15	Section 15	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
IL.13.15(1)	Section 15	Upon the data subject's request the data controller shall provide information concerning the data relating to him, including those processed	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and	8	
IL.13.15(1)	Section 15	Upon the data subject's request the data controller shall provide information concerning the data relating to him, including those processed by a data processor on its behalf or according to his/her notice ⁷ , the sources from where they were obtained, the purpose, grounds and duration of processing, the name and address of the data processor and on its activities relating to data processing, and - if the personal data of the data subject is made available to others - the legal basis and the recipients.	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	8	
IL.13.15(2)	Section 15	With a view to verifying legitimacy of data transfer and for the information of the data subject, the data controller shall maintain a transmission log, showing the date of time of transmission, the legal basis of transmission and the recipient, description of the personal data transmitted, and other information prescribed by the relevant legislation on data processing.	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed;	8	
IL.13.15(2)	Section 15	With a view to verifying legitimacy of data transfer and for the information of the data subject, the data controller shall maintain a transmission log, showing the date of time of transmission, the legal basis of transmission and the recipient, description of the personal data transmitted, and other information prescribed by the relevant legislation on data processing.	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	8	
IL.13.15(2)	Section 15	With a view to verifying legitimacy of data transfer and for the information of the data subject, the data controller shall maintain a transmission log, showing the date of time of transmission, the legal basis of transmission and the recipient, description of the personal data transmitted, and other information prescribed by the relevant legislation on data processing.	Functional	Intersects With	Documenting Data Processing Activities	PRI-14	Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.	8	
IL.13.15(2)	Section 15	With a view to verifying legitimacy of data transfer and for the information of the data subject, the data controller shall maintain a transmission log, showing the date of time of transmission, the legal basis of transmission and the recipient, description of the personal data transmitted, and other information prescribed by the relevant legislation on data processing.	Functional	Intersects With	Accounting of Disclosures	PRI-14.1	Mechanisms exist to provide data subjects with an accounting of disclosures of their Personal Data (PD) controlled by: (1) The organization; and/or (2) Relevant third-parties that their PD was shared with.	8	
IL.13.15(3)	Section 15	The duration of retention of the data referred to in Subsection (2) in the transmission log, and the duration of the ensuing obligation of information may be limited by the legislation on data processing. The above-specified period of limitation shall not be less than five years in respect of personal data, and twenty years in respect of special data.	Functional	Intersects With	Personal Data (PD) Retention & Disposal	PRI-05	Mechanisms exist to: (1) Retain Personal Data (PD), including metadata, for an organization-defined time period to fulfill the purpose(s) identified in the notice or as required by law; (2) Dispose of, destroys, erases, and/or anonymizes the PD, regardless of the method of storage; and	8	
IL.13.15(4)	Section 15	Data controllers must comply with requests for information without any delay, and provide the information requested in an intelligible form, in writing at the data subject's request, within not more than thirty days.	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD;	8	
IL.13.15(4)	Section 15	Data controllers must comply with requests for information without any delay, and provide the information requested in an intelligible form, in writing at the data subject's request, within not more than thirty days.	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	8	
IL.13.15(5)	Section 15	The information prescribed in Subsection (4) shall be provided free of charge for any category of data once a year. Additional information concerning the same category of data may be subject to a charge. The amount of such charge may be fixed in an agreement between the parties. Where any payment is made in connection with data that was processed	Functional	No Relationship	N/A	N/A	N/A	0	
IL.13.16	Section 16	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
IL.13.16(1)	Section 16	The data controller may refuse to provide information to the data subject in the cases defined under Subsection (1) of Section 9 and under Section 19.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD).	3	
IL.13.16(1)	Section 16	The data controller may refuse to provide information to the data subject in the cases defined under Subsection (1) of Section 9 and under Section 19.	Functional	Intersects With	Disclosure Request Rejections	PRI-07.4	Mechanisms exist to reject disclosure requests that are: (1) Unjustified; (2) Unauthenticated or untrustworthy; and/or (3) Unlawful.	3	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
II.13.16(2)	Section 16	Should a request for information be denied, the data controller shall inform the data subject in writing as to the provision of this Act serving grounds for refusal. Where information is refused, the data controller shall inform the data subject of the possibilities for seeking judicial remedy or lodging a	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates	8	
II.13.16(2)	Section 16	Should a request for information be denied, the data controller shall inform the data subject in writing as to the provision of this Act serving grounds for refusal. Where information is refused, the data controller shall inform the data subject of the possibilities for seeking judicial remedy or lodging a complaint with the Nemzeti Adatvédelmi és Információszabadság Hatóság (National Authority for Data Protection and Freedom of Information) (hereinafter referred to as "Authority").	Functional	Intersects With	Data Subject Communications	PRI-17	Mechanisms exist to craft disclosures and communications to data subjects in a manner that is concise, unambiguous and understandable by a reasonable person.	8	
II.13.16(3)	Section 16	Data controllers shall notify the Authority of refused requests once a year, by 31 January of the following year.	Functional	Intersects With	Security, Compliance & Resilience Status Reporting	GOV-17	Mechanisms exist to submit status reporting of the organization's security, compliance and/or resilience program to applicable statutory and/or regulatory authorities, as required.	5	
II.13.17	Section 17	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.13.17(1)	Section 17	Where a personal data is deemed inaccurate, and the correct personal data is at the controller's disposal, the data controller shall rectify the	Functional	Intersects With	Personal Data (PD) Accuracy & Integrity	PRI-05.2	Mechanisms exist to ensure the accuracy and relevance of Personal Data (PD) throughout the information lifecycle by:	5	
II.13.17(1)	Section 17	Where a personal data is deemed inaccurate, and the correct personal data is at the controller's disposal, the data controller shall rectify the personal data in question.	Functional	Intersects With	Correcting Inaccurate Personal Data (PD)	PRI-06.1	Mechanisms exist to maintain a process for: (1) Data subjects to have inaccurate Personal Data (PD) maintained by the organization corrected or amended; and (2) Disseminating corrections or amendments of PD to other authorized	5	
II.13.17(2)	Section 17	Personal data shall be erased if:	Functional	No Relationship	N/A	N/A	N/A	0	
II.13.17(2)(a)	Section 17	processed unlawfully;	Functional	Intersects With	Personal Data (PD) Retention & Disposal	PRI-05	Mechanisms exist to: (1) Retain Personal Data (PD), including metadata, for an organization-	5	
II.13.17(2)(b)	Section 17	so requested by the data subject in accordance with Paragraph c) of Section 14;	Functional	Intersects With	Personal Data (PD) Retention & Disposal	PRI-05	Mechanisms exist to: (1) Retain Personal Data (PD), including metadata, for an organization-defined time period to fulfill the purpose(s) identified in the notice or as required by law; (2) Dispose of, destroys, erases, and/or anonymizes the PD, regardless of the method of storage; and (3) Use organization-defined techniques or methods to ensure secure deletion or destruction of PD (including originals, copies and archived records).	5	
II.13.17(2)(c)	Section 17	incomplete or inaccurate and it cannot be lawfully rectified, provided that erasure is not disallowed by statutory provision of an act;	Functional	Intersects With	Personal Data (PD) Retention & Disposal	PRI-05	Mechanisms exist to: (1) Retain Personal Data (PD), including metadata, for an organization-defined time period to fulfill the purpose(s) identified in the notice or as required by law; (2) Dispose of, destroys, erases, and/or anonymizes the PD, regardless of the method of storage; and (3) Use organization-defined techniques or methods to ensure secure deletion or destruction of PD (including originals, copies and archived records).	5	
II.13.17(2)(d)	Section 17	the purpose of processing no longer exists or the legal time limit for storage has expired;	Functional	Intersects With	Personal Data (PD) Retention & Disposal	PRI-05	Mechanisms exist to: (1) Retain Personal Data (PD), including metadata, for an organization-defined time period to fulfill the purpose(s) identified in the notice or as required by law; (2) Dispose of, destroys, erases, and/or anonymizes the PD, regardless of the method of storage; and (3) Use organization-defined techniques or methods to ensure secure deletion or destruction of PD (including originals, copies and archived records).	5	
II.13.17(2)(e)	Section 17	so ordered by court or by the Authority.	Functional	Intersects With	Personal Data (PD) Retention & Disposal	PRI-05	Mechanisms exist to: (1) Retain Personal Data (PD), including metadata, for an organization-defined time period to fulfill the purpose(s) identified in the notice or as required by law; (2) Dispose of, destroys, erases, and/or anonymizes the PD, regardless of the method of storage; and (3) Use organization-defined techniques or methods to ensure secure deletion or destruction of PD (including originals, copies and archived records).	5	
II.13.17(3)	Section 17	Where Paragraph d) of Subsection (2) applies, the requirement of erasure shall not apply to personal data recorded on a carrier that is to be deposited in archive under the legislation on the protection of archive materials.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	3	
II.13.17(4)	Section 17	Personal data shall be blocked instead of erased if so requested by the data subject, or if there are reasonable grounds to believe that erasure could affect the legitimate interests of the data subject. Blocked data shall be processed only for the purpose which prevented their erasure.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	3	
II.13.17(5)	Section 17	If the accuracy of an item of personal data is contested by the data subject and its accuracy or inaccuracy cannot be ascertained beyond doubt, the data controller shall mark that personal data for the purpose of referencing.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	3	
II.13.18	Section 18	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.13.18(1)	Section 18	When a data is rectified, blocked, marked or erased, the data subject and all recipients to whom it was transmitted for processing shall be notified.	Functional	Intersects With	Communicating Processing Changes	PRI-03.11	Mechanisms exist to notify data subjects of processing changes affecting their Personal Data (PD), including:	5	
II.13.18(1)	Section 18	When a data is rectified, blocked, marked or erased, the data subject and all recipients to whom it was transmitted for processing shall be notified. Notification is not required if it does not violate the rightful interest of the data subject in light of the purpose of processing.	Functional	Intersects With	Obligation To Inform Third-Parties	PRI-07.3	Mechanisms exist to inform applicable third-parties of any modification, deletion or other change that affects shared Personal Data (PD).	5	
II.13.18(2)	Section 18	If the data controller refuses to comply with the data subject's request for rectification, blocking or erasure, the factual or legal reasons on which the decision for refusing the request for rectification, blocking or erasure is based shall be communicated in writing within thirty days of receipt of the request.	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates	8	
II.13.18(2)	Section 18	If the data controller refuses to comply with the data subject's request for rectification, blocking or erasure, the factual or legal reasons on which the decision for refusing the request for rectification, blocking or erasure is based shall be communicated in writing within thirty days of receipt of the request. Where rectification, blocking or erasure is refused, the data controller shall inform the data subject of the possibilities for seeking judicial remedy or lodging a complaint with the Authority.	Functional	Intersects With	Data Subject Communications	PRI-17	Mechanisms exist to craft disclosures and communications to data subjects in a manner that is concise, unambiguous and understandable by a reasonable person.	8	
II.13.19	Section 19	The rights of data subjects afforded under Sections 14-18 may be restricted by law in order to safeguard the external and internal security of the State, such as defence, national security, the prevention and prosecution of criminal offences, the safety of penal institutions, to protect the economic and financial interests of central and local government, safeguard the important economic and financial interests of the European Union, guard against disciplinary and ethical breaches in regulated professions, prevent and detect breaches of obligation related to labour	Functional	No Relationship	N/A	N/A	N/A	0	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
II.14	Requirement of preliminary information of the data subject	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.14.20	Section 20	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.14.20(1)	Section 20	Prior to data processing being initiated the data subject shall be informed whether his consent is required or processing is mandatory.	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first	8	
II.14.20(1)	Section 20	Prior to data processing being initiated the data subject shall be informed whether his consent is required or processing is mandatory.	Functional	Intersects With	Active Participation By Data Subjects	PRI-03.7	Mechanisms exist to compel data subjects to select the level of consent deemed appropriate by the data subject for the relevant business purpose (e.g., opt-in, opt-out, accept all cookies, etc.).	8	
II.14.20(2)	Section 20	Before processing operations are carried out the data subject shall be clearly and elaborately informed of all aspects concerning the processing of his personal data, such as the purpose for which his data is required and	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary;	8	
II.14.20(2)	Section 20	Before processing operations are carried out the data subject shall be clearly and elaborately informed of all aspects concerning the processing of his personal data, such as the purpose for which his data is required and the legal basis, the person entitled to control the data and to carry out the processing, the duration of the proposed processing operation, if the data subject's personal data is processed in accordance with Subsection (5) of Section 6, and the persons to whom his data may be disclosed. Information shall also be provided on the data subject's rights and remedies.	Functional	Intersects With	Purpose Specification	PRI-02.1	Mechanisms exist to ensure data privacy notices identify the purpose(s) for which Personal Data (PD) is collected, received, processed, stored, transmitted and/or shared.	8	
II.14.20(3)	Section 20	In the case of mandatory processing such information may be supplied by way of publishing reference to the legislation containing the information referred to in Subsection (2).	Functional	No Relationship	N/A	N/A	N/A	0	
II.14.20(4)	Section 20	If the provision of personal information to the data subject proves impossible or would involve disproportionate costs, the obligation of information may be satisfied by the public disclosure of the following: an indication of the fact that data is being collected;	Functional	No Relationship	N/A	N/A	N/A	0	
II.14.20(4)(a)	Section 20		Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary;	8	
II.14.20(4)(b)	Section 20	the data subjects targeted;	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	8	
II.14.20(4)(c)	Section 20	the purpose of data collection;	Functional	Intersects With	Purpose Specification	PRI-02.1	Mechanisms exist to ensure data privacy notices identify the purpose(s) for which Personal Data (PD) is collected, received, processed, stored, transmitted and/or shared.	5	
II.14.20(4)(d)	Section 20	the duration of the proposed processing operation;	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary;	8	
II.14.20(4)(d)	Section 20	the duration of the proposed processing operation;	Functional	Intersects With	Personal Data (PD) Retention & Disposal	PRI-05	Mechanisms exist to: (1) Retain Personal Data (PD), including metadata, for an organization-defined time period to fulfill the purpose(s) identified in the notice or as required by law; (2) Dispose of, destroys, erases, and/or anonymizes the PD, regardless of the method of storage; and (3) Use organization-defined techniques or methods to ensure secure deletion or destruction of PD (including originals, copies and archived records).	8	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
II.14.20(4)(e)	Section 20	the potential data controllers with the right of access;	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	8	
II.14.20(4)(f)	Section 20	the right of data subjects and remedies available relating to data processing; and	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	8	
II.14.20(4)(f)	Section 20	the right of data subjects and remedies available relating to data processing; and	Functional	Intersects With	Notice of Right To Limit	PRI-02.13	Mechanisms exist to include within the data privacy notice a notification to data subjects of: (1) Their right to limit the use and disclosure of their sensitive Personal Data (sPD); and	8	
II.14.20(4)(g)	Section 20	where the processing operation has to be registered, the number assigned in the data protection register, with the exception of Subsection (2) of Section 68.	Functional	No Relationship	N/A	N/A	N/A	0	
II.15	The data subject's right to object to the processing of his	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.15.21	Section 21	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.15.21(1)	Section 21	The data subject shall have the right to object to the processing of data relating to him:	Functional	No Relationship	N/A	N/A	N/A	0	
II.15.21(1)(a)	Section 21	if processing or disclosure is carried out solely for the purpose of discharging the controller's legal obligation or for enforcing the rights and	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD)	5	
II.15.21(1)(a)	Section 21	if processing or disclosure is carried out solely for the purpose of discharging the controller's legal obligation or for enforcing the rights and legitimate interests of the controller, the recipient or a third party, unless processing is mandatory.	Functional	Intersects With	Data Subject Consent	PRI-03	Mechanisms exist to enable data subjects to authorize the collection, receipt, processing, storage, transmission, sharing, updating and/or disposal of their Personal Data (PD), where the data subject is provided, prior to collection, with:	5	
II.15.21(1)(a)	Section 21	If processing or disclosure is carried out solely for the purpose of discharging the controller's legal obligation or for enforcing the rights and legitimate interests of the controller, the recipient or a third party, unless processing is mandatory;	Functional	Intersects With	Revoke Consent	PRI-03.4	Mechanisms exist to allow data subjects to revoke consent to collect, receive, process, store, transmit, share and/or update their Personal Data (PD).	5	
II.15.21(1)(b)	Section 21	if personal data is used or disclosed for the purposes of direct marketing, public opinion polling or scientific research; and	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
II.15.21(1)(b)	Section 21	if personal data is used or disclosed for the purposes of direct marketing, public opinion polling or scientific research; and	Functional	Intersects With	Data Subject Consent	PRI-03	Mechanisms exist to enable data subjects to authorize the collection, receipt, processing, storage, transmission, sharing, updating and/or disposal of their Personal Data (PD), where the data subject is provided, prior to collection, with:	5	
II.15.21(1)(b)	Section 21	if personal data is used or disclosed for the purposes of direct marketing, public opinion polling or scientific research; and	Functional	Intersects With	Revoke Consent	PRI-03.4	Mechanisms exist to allow data subjects to revoke consent to collect, receive, process, store, transmit, share and/or update their Personal Data (PD).	5	
II.15.21(1)(c)	Section 21	in all other cases prescribed by law.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary	5	
II.15.21(1)(c)	Section 21	in all other cases prescribed by law.	Functional	Intersects With	Data Subject Consent	PRI-03	Mechanisms exist to enable data subjects to authorize the collection, receipt, processing, storage, transmission, sharing, updating and/or disposal of their Personal Data (PD), where the data subject is provided, prior to collection, with:	5	
II.15.21(2)	Section 21	In the event of objection, the controller shall investigate the cause of objection within the shortest possible time inside a fifteen-day time period, adopt a decision as to merits and shall notify the data subject in writing of its decision.	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
II.15.21(3)	Section 21	If, according to the findings of the controller, the data subject's objection is justified, the controller shall terminate all processing operations (including data collection and transmission), block the data involved and notify all recipients to whom any of these data had previously been transferred concerning the objection and the ensuing measures, upon which these	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
II.15.21(3)	Section 21	If, according to the findings of the controller, the data subject's objection is justified, the controller shall terminate all processing operations (including data collection and transmission), block the data involved and notify all recipients to whom any of these data had previously been transferred concerning the objection and the ensuing measures, upon which these recipients shall also take measures regarding the enforcement of the objection.	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
II.15.21(4)	Section 21	If the data subject disagrees with the decision taken by the controller under Subsection (2), or if the controller fails to meet the deadline specified in Subsection (2), the data subject shall have the right under Section 22 to turn to court within thirty days of the date of delivery of the decision or from the last day of the time limit.	Functional	No Relationship	N/A	N/A	N/A	0	
II.15.21(5)	Section 21	If data that are necessary to assert the data recipient's rights are withheld owing to the data subject's objection, the data recipient shall have the right under Section 22 to turn to court against the controller within fifteen days from the date the decision is delivered under Subsection (2) in order to obtain the data. The controller is authorised to summon the data subject	Functional	No Relationship	N/A	N/A	N/A	0	
II.15.21(6)	Section 21	If the data controller fails to send notice as specified in Subsection (3), the data recipient shall have the right to request information from the controller concerning the circumstances of non-disclosure, upon which the controller shall make available the information requested within eight days of receipt of the data recipient's request. Where information had been requested, the data recipient may bring an action against the controller	Functional	No Relationship	N/A	N/A	N/A	0	
II.15.21(7)	Section 21	The controller shall not delete the data of the data subject if processing has been prescribed by law. However, data may not be disclosed to the data recipient if the controller agrees with the objection or if the court has found the objection justified.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
II.15.21(7)	Section 21	The controller shall not delete the data of the data subject if processing has been prescribed by law. However, data may not be disclosed to the data recipient if the controller agrees with the objection or if the court has found the objection justified.	Functional	Intersects With	Personal Data (PD) Retention & Disposal	PRI-05	Mechanisms exist to: (1) Retain Personal Data (PD), including metadata, for an organization-defined time period to fulfill the purpose(s) identified in the notice or as required by law;	3	
II.16	Judicial remedy	In order to enforce his rights, the data subject may, in accordance with the provisions of Chapter VI: a) initiate the investigation of the Authority for the purpose of examining the legality of the controller's measure if the controller restricts the exercise of the data subject's rights or rejects a request for the exercise of those rights, and b) request the Authority to initiate administrative data protection proceedings.	Functional	No Relationship	N/A	N/A	N/A	0	
II.17	Compensation	The data subject may apply to a court against the controller or – with regard to data processing operations within the scope of the processor – against the processor, if the controller or the processor acting on the instructions of the controller processes his personal data in violation of provisions laid down in legislation or in a binding legal act of the European Union, and thereby causes damage to his personality rights or other legally	Functional	No Relationship	N/A	N/A	N/A	0	
II.18	Internal data protection officer, data protection rules	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.18.24	Section 24	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.18.24(1)	Section 24	The following data controllers and processors shall appoint or commission an internal data protection officer – who shall hold a law degree, a degree	Functional	No Relationship	N/A	N/A	N/A	0	
II.18.24(1)(a)	Section 24	authorities of nation-wide jurisdiction, and data controllers and processors engaged in processing data files of employment and criminal records;	Functional	Intersects With	Data Protection Officer (DPO)	PRI-01.4	Mechanisms exist to appoint a Data Protection Officer (DPO): (1) Based on professional qualifications; and (2) To be involved in all issues related to how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed.	8	
II.18.24(1)(b)	Section 24	financial institutions;	Functional	Intersects With	Data Protection Officer (DPO)	PRI-01.4	Mechanisms exist to appoint a Data Protection Officer (DPO): (1) Based on professional qualifications; and (2) To be involved in all issues related to how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed.	8	
II.18.24(1)(c)	Section 24	providers of electronic communications and public utility services.	Functional	Intersects With	Data Protection Officer (DPO)	PRI-01.4	Mechanisms exist to appoint a Data Protection Officer (DPO): (1) Based on professional qualifications; and (2) To be involved in all issues related to how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed.	8	
II.18.24(2)	Section 24	The internal data protection officer shall:	Functional	Intersects With	Defined Roles & Responsibilities	HRS-03	Mechanisms exist to define cybersecurity roles & responsibilities for all personnel.	5	
II.18.24(2)	Section 24	The internal data protection officer shall:	Functional	Intersects With	Data Protection Officer (DPO)	PRI-01.4	Mechanisms exist to appoint a Data Protection Officer (DPO): (1) Based on professional qualifications; and	5	
II.18.24(2)(a)	Section 24	participate and assist in the decision-making process with regard to data processing and enforcing the rights of data subjects;	Functional	Intersects With	Data Protection Officer (DPO)	PRI-01.4	Mechanisms exist to appoint a Data Protection Officer (DPO): (1) Based on professional qualifications; and (2) To be involved in all issues related to how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed.	5	
II.18.24(2)(b)	Section 24	monitor compliance with the provisions of this Act and other regulations on data processing as well as with the provisions of internal data protection and data security regulations and the data security requirements;	Functional	Intersects With	Data Protection Officer (DPO)	PRI-01.4	Mechanisms exist to appoint a Data Protection Officer (DPO): (1) Based on professional qualifications; and (2) To be involved in all issues related to how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed.	5	
II.18.24(2)(c)	Section 24	investigate complaints conveyed to him and, if he detects any unauthorized data processing operations, call on the controller or processor in question to cease such operations;	Functional	Intersects With	Data Protection Officer (DPO)	PRI-01.4	Mechanisms exist to appoint a Data Protection Officer (DPO): (1) Based on professional qualifications; and (2) To be involved in all issues related to how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed.	8	
II.18.24(2)(d)	Section 24	draw up the internal data protection and data security rules;	Functional	Intersects With	Data Protection Officer (DPO)	PRI-01.4	Mechanisms exist to appoint a Data Protection Officer (DPO): (1) Based on professional qualifications; and (2) To be involved in all issues related to how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed.	8	
II.18.24(2)(e)	Section 24	maintain the internal data protection register;	Functional	Intersects With	Data Protection Officer (DPO)	PRI-01.4	Mechanisms exist to appoint a Data Protection Officer (DPO): (1) Based on professional qualifications; and (2) To be involved in all issues related to how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed.	8	
II.18.24(2)(f)	Section 24	organises training sessions on the subject of data protection.	Functional	Intersects With	Data Protection Officer (DPO)	PRI-01.4	Mechanisms exist to appoint a Data Protection Officer (DPO): (1) Based on professional qualifications; and (2) To be involved in all issues related to how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed.	8	
II.18.24(3)	Section 24	The controllers referred to in Subsection (1) and central and local government controllers - other than controllers not required to report to the data protection register - shall be required to adopt data protection and data security rules in accordance with this Act.	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
II.19	Conference of internal data protection officers	The Conference of Data Protection Officers serves as a regular professional liaison between the Authority and data protection officers, with the aim of establishing uniform case law in the application of legislation on the protection of personal data and the right of access to	Functional	No Relationship	N/A	N/A	N/A	0	
III	ACCESS TO INFORMATION OF PUBLIC INTEREST	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
III.20	General provisions on access to information of public interest	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
III.20.26	Section 26	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
III.20.26(1)	Section 26	Any person or body attending to statutory State or municipal government functions or performing other public duties provided for by the relevant	Functional	No Relationship	N/A	N/A	N/A	0	
III.20.26(2)	Section 26	The name of the person undertaking tasks within the scope of responsibilities and authority of the body undertaking public duties, as well as their scope of responsibilities, scope of work, executive mandate and other personal data relevant to the provision of their responsibilities to which access must be ensured by law qualify as data public on grounds of public interest. These data may be disseminated in compliance with the	Functional	No Relationship	N/A	N/A	N/A	0	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
III.20.26(3)	Section 26	Unless otherwise prescribed by law, any data, other than personal data, that is processed by bodies or persons providing services prescribed mandatorily by law or under contract with any governmental agency, central or local, if such services are not available in any other way or form relating to their activities shall be deemed data public on grounds of public interest.	Functional	No Relationship	N/A	N/A	N/A	0	
III.20.27	Section 27	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
III.20.27(1)	Section 27	Access to data of public interest or data public on grounds of public interest shall be restricted if it has been classified under the Act on the Right of access to data of public interest or data public on grounds of public interest may be restricted by law - with the specific type of data indicated - where considered necessary to safeguard:	Functional	No Relationship	N/A	N/A	N/A	0	
III.20.27(2)	Section 27	national defense;	Functional	No Relationship	N/A	N/A	N/A	0	
III.20.27(2)(a)	Section 27	national security;	Functional	No Relationship	N/A	N/A	N/A	0	
III.20.27(2)(b)	Section 27	prevention and prosecution of criminal offenses;	Functional	No Relationship	N/A	N/A	N/A	0	
III.20.27(2)(c)	Section 27	environmental protection and nature preservation;	Functional	No Relationship	N/A	N/A	N/A	0	
III.20.27(2)(d)	Section 27	central financial or foreign exchange policy;	Functional	No Relationship	N/A	N/A	N/A	0	
III.20.27(2)(e)	Section 27	external relations, relations with international organizations;	Functional	No Relationship	N/A	N/A	N/A	0	
III.20.27(2)(f)	Section 27	court proceedings or administrative proceedings;	Functional	No Relationship	N/A	N/A	N/A	0	
III.20.27(2)(g)	Section 27	intellectual property rights.	Functional	No Relationship	N/A	N/A	N/A	0	
III.20.27(2)(h)	Section 27	Access to business secrets shall be governed by the relevant provisions of the Civil Code.	Functional	No Relationship	N/A	N/A	N/A	0	
III.20.27(3)	Section 27	Access to public information may also be limited by European Union legislation with a view to any important economic or financial interests of Any information compiled or recorded by a body with public service functions as part of, and in support of, a decision-making process for which it is vested with powers and competence, shall not be made	Functional	No Relationship	N/A	N/A	N/A	0	
III.20.27(4)	Section 27	A request for disclosure of information underlying a decision may be rejected after the decision is adopted, but within the time limit referred to in Subsection (5), if disclosure is likely to jeopardize the legal functioning of the body with public service functions or the discharging of its duties without any undue influence, such as in particular free expression of the position of the body which generated the data during the preliminary stages of the decision-making process.	Functional	No Relationship	N/A	N/A	N/A	0	
III.20.27(5)	Section 27	The time limit for restriction of access as defined in Subsection (5) to certain specific information underlying a decision may be reduced by law.	Functional	No Relationship	N/A	N/A	N/A	0	
III.20.27(6)	Section 27	This Chapter shall not apply to the disclosure of information from official records that is subject to the provisions of specific other legislation.	Functional	No Relationship	N/A	N/A	N/A	0	
III.21	Access to public information upon request	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
III.21.28	Section 28	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
III.21.28(1)	Section 28	Data of public interest shall be made available to anyone upon a request presented verbally, in writing or by electronic means. Access to data public	Functional	No Relationship	N/A	N/A	N/A	0	
III.21.28(2)	Section 28	Unless otherwise provided for by law, the processing of personal data in connection with any disclosure upon request is permitted only to the extent necessary for disclosure, including the collection of payment of charges for copies, where applicable. Following the disclosure of data and if any part of the request is unclear, the data controller shall ask the requesting party to clarify.	Functional	No Relationship	N/A	N/A	N/A	0	
III.21.28(3)	Section 28		Functional	No Relationship	N/A	N/A	N/A	0	
III.21.29	Section 29	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
III.21.29(1)	Section 29	The body with public service functions that has the data of public interest on record must comply with requests for public information at the earliest	Functional	No Relationship	N/A	N/A	N/A	0	
III.21.29(2)	Section 29	If a request for information is substantial in terms of size and volume, the time limit referred to in Subsection (1) may be extended by fifteen days on one occasion, of which the requesting party shall be informed within eight	Functional	No Relationship	N/A	N/A	N/A	0	
III.21.29(3)	Section 29	The requesting party may also be provided a copy of the document or part of a document containing the information in question, irrespective of the form of storage. The body with public service functions processing the data in question may charge a fee covering only the costs of making the copy.	Functional	No Relationship	N/A	N/A	N/A	0	
III.21.29(4)	Section 29	If the document or part of a document of which the copy had been requested is substantial in size and/or volume, the copy shall be provided within fifteen days from the date of payment of the fee as charged. The requesting party shall be notified within eight days from the date of receipt of his request if the document or part of a document of which the copy had been requested is considered substantial in size and/or volume, as well as	Functional	No Relationship	N/A	N/A	N/A	0	
III.21.29(5)	Section 29	The items covered by the fee chargeable, and the highest amount that can be taken into account in determining the amount of the fee, and the aspects for determining whether a document is to be considered substantial in terms of size and/or volume shall be laid down by specific other legislation.	Functional	No Relationship	N/A	N/A	N/A	0	
III.21.30	Section 30	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
III.21.30(1)	Section 30	If a document that contains data of public interest also contains any data that cannot be disclosed to the requesting party, this data must be	Functional	No Relationship	N/A	N/A	N/A	0	
III.21.30(3)	Section 30	When a request for information is refused, the requesting party must be notified thereof within eight days in writing, or by electronic means if the requesting party has conveyed his electronic mailing address, and must be	Functional	No Relationship	N/A	N/A	N/A	0	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
III.21.30(4)	Section 30	A request for data of public interest by a person whose native language is not Hungarian may not be refused for reasons that it was written in his native language or in any other language he understands.	Functional	No Relationship	N/A	N/A	N/A	0	
III.21.30(5)	Section 30	If, as regards the refusal of any request for access to data of public interest, the data controller is granted discretionary authority by law, refusal shall be exercised within narrow limits, and the request for access	Functional	No Relationship	N/A	N/A	N/A	0	
III.21.30(6)	Section 30	Bodies with public service functions shall adopt regulations governing the procedures for satisfying requests for access to public information.	Functional	No Relationship	N/A	N/A	N/A	0	
III.21.30(7)	Section 30	The requests for data with the purpose of a comprehensive, account level as well as an itemized control of the financial management of the body.	Functional	No Relationship	N/A	N/A	N/A	0	
III.21.31	Section 31	The applicant may apply to a court for refusal of a request for access to data of public interest, or for the expiry of the deadline for fulfilment of the request, or for reviewing the amount of cost reimbursement established for fulfilment of the data request. The lawsuit may be brought within thirty days of the refusal of the request or of the deadline expiry, and if the costs	Functional	No Relationship	N/A	N/A	N/A	0	
IV	DISSEMINATION OF DATA OF PUBLIC INTEREST	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
IV.22	Obligation to disclose data of public interest	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
IV.22.32	Section 32	Bodies with public service functions shall promote and ensure that the general public is provided with accurate information in a prompt manner	Functional	No Relationship	N/A	N/A	N/A	0	
IV.23	Obligation of publication by electronic means	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
IV.23.33	Section 33	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
IV.23.33(1)	Section 33	Access to public information whose publication is rendered mandatory under this Act shall be made available through the internet, in digital	Functional	No Relationship	N/A	N/A	N/A	0	
IV.23.33(2)	Section 33	Unless otherwise provided for by law, the following shall disseminate specific information defined on the publication lists referred to in Section 37:	Functional	No Relationship	N/A	N/A	N/A	0	
IV.23.33(2)(a)	Section 33	őztársasági Elnök Hivatala (President of the Republic), Országgyűlés Hivatala (Parliament), Alkotmánybíróság Hivatala (Constitutional Court), Alapvető Jogok Biztosának Hivatala (Commissioner for Fundamental	Functional	No Relationship	N/A	N/A	N/A	0	
IV.23.33(2)(b)	Section 33	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
IV.23.33(2)(c)	Section 33	central administrative authorities with the exception of governmental committees as well as national chambers; and	Functional	No Relationship	N/A	N/A	N/A	0	
IV.23.33(2)(d)	Section 33	county and capital Government Offices.	Functional	No Relationship	N/A	N/A	N/A	0	
IV.23.33(3)	Section 33	The bodies with public service functions, other than those listed in Subsection (2), shall have the option to fulfil their obligation of publication	Functional	No Relationship	N/A	N/A	N/A	0	
IV.23.33(4)	Section 33	Any public education institution having no national or regional duties shall discharge their obligation of publication by electronic means under this Act by way of data disclosure to the information systems specified by the relevant legislation governing the given sector.	Functional	No Relationship	N/A	N/A	N/A	0	
IV.23.34	Section 34	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
IV.23.34(1)	Section 34	The data source, if disseminating information through the website of others shall transfer the data - in accordance with Section 35 - to the data	Functional	No Relationship	N/A	N/A	N/A	0	
IV.23.34(2)	Section 34	The data disseminator shall design the website used for publication with facilities to disseminate data and information, and shall ensure that the website runs without interruption and it is properly maintained, and that data are updated on a regular basis.	Functional	No Relationship	N/A	N/A	N/A	0	
IV.23.34(3)	Section 34	The website used for dissemination shall offer easily understandable information concerning the rules of access to public information, including the remedies available.	Functional	No Relationship	N/A	N/A	N/A	0	
IV.23.34(4)	Section 34	In addition to the public information specified on the publication lists, other public information and information of public interest may also be published on the website used for dissemination by way of electronic	Functional	No Relationship	N/A	N/A	N/A	0	
IV.23.35	Section 35	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
IV.23.35(1)	Section 35	The head of the data source subject to electronic publication shall provide for having the data and information specified on the publication lists	Functional	No Relationship	N/A	N/A	N/A	0	
IV.23.35(2)	Section 35	Responsibility for the publication of the data by electronic means, continuous access, and for keeping them authentic and regularly updates lies with the data disseminator.	Functional	No Relationship	N/A	N/A	N/A	0	
IV.23.35(3)	Section 35	The data source and the data disseminator shall adopt internal regulations for laying down the detailed rules for discharging the obligations referred to in Subsection (1) and Subsection (2), respectively.	Functional	No Relationship	N/A	N/A	N/A	0	
IV.23.35(4)	Section 35	Information published electronically may not be removed from the website, unless otherwise provided for by this Act or other legislation. In the event of dissolution of a body, the obligation of publication shall devolve upon the successor.	Functional	No Relationship	N/A	N/A	N/A	0	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
IV.23.36	Section 36	Dissemination of the information specified in the publication lists referred to in Section 37 shall be without prejudice to the obligation of the given body concerning the publication of public information or information of public interest prescribed in other legislation.	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24	Disclosure lists	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24.37	Section 37	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24.37(1)	Section 37	The bodies referred to in Subsections (2)-(4) of Section 33 (hereinafter referred to collectively as "body subject to disclosure requirement") shall -	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24.37(2)	Section 37	Additional data may be prescribed by law to be disseminated by certain types of bodies with public service functions regarding certain specific sectors (hereinafter referred to as "special disclosure list").	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24.37(3)	Section 37	The publication of specific other data may be rendered mandatory by the head of the body subject to disclosure requirement - upon consulting with the Authority -, as well as by statutory provisions for bodies with public	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24.37(4)	Section 37	The Government shall decree - upon consulting with the Authority - the information to be made public by the national security services.	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24.37(5)	Section 37	In the case of collegiate bodies subject to disclosure requirement, these bodies shall have powers to establish, and amend, the ad hoc disclosure	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24.37(6)	Section 37	The head of the body subject to disclosure requirement shall review the disclosure list he has published under Subsection (3), taking into consideration any demand shown for public information that was not	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24.37(7)	Section 37	The disclosure list may also provide for the frequency of publication, depending on the type of data in question.	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24.37(8)	Section 37	The Authority may present a recommendation for having special and ad hoc publication lists drawn up, or amended.	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24/A	Central electronic register of public	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24/A.37/A	Section 37/A	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24/A.37/A(1)	Section 37/A	In the interest of providing fast and easy access to information that has been published electronically, the central electronic register posted on a	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24/A.37/A(2)	Section 37/A	Electronic access using a single platform to the public information of the bodies referred to in Subsection (1) and facilities for searching among public information shall be ensured by the single data retrieval system set up by the minister in charge for the implementation of infrastructure requirements for administrative information technology systems.	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24/A.37/B	Section 37/B	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24/A.37/B(1)	Section 37/B	The data source shall provide for having the descriptive information on websites, databases and registers containing public information made	Functional	No Relationship	N/A	N/A	N/A	0	
IV.24/A.37/B(2)	Section 37/B	Maintaining the databases and registers containing public information and linking up with the single data retrieval system shall not exonerate the data source from the obligation of publication by electronic means.	Functional	No Relationship	N/A	N/A	N/A	0	
CHAPTER V	NEMZETI ADATVEDELMI ES INFORMACIOSZABADSA	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
V.25	Legal status of the Authority	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
V.25.38	Section 38	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
V.25.38(1)	Section 38	The Authority is an autonomous administrative organ.	Functional	No Relationship	N/A	N/A	N/A	0	
V.25.38(2)	Section 38	The Authority shall be responsible to supervise and promote the enforcement of the rights to the protection of personal data and access to	Functional	No Relationship	N/A	N/A	N/A	0	
V.25.38(3)	Section 38	Within its scope of responsibilities conferred under Subsection (2), the Authority;	Functional	No Relationship	N/A	N/A	N/A	0	
V.25.38(3)(a)	Section 38	shall conduct investigations upon notification;	Functional	No Relationship	N/A	N/A	N/A	0	
V.25.38(3)(b)	Section 38	may conduct ex officio administrative proceedings for data protection;	Functional	No Relationship	N/A	N/A	N/A	0	
V.25.38(3)(c)	Section 38	may conduct ex officio administrative proceedings for the control of classified data;	Functional	No Relationship	N/A	N/A	N/A	0	
V.25.38(3)(d)	Section 38	may turn to court in connection with any infringement concerning public information and information of public interest;	Functional	No Relationship	N/A	N/A	N/A	0	
V.25.38(3)(e)	Section 38	may intervene in court actions brought by others;	Functional	No Relationship	N/A	N/A	N/A	0	
V.25.38(3)(f)	Section 38	maintain the data protection register;	Functional	No Relationship	N/A	N/A	N/A	0	
V.25.38(4)	Section 38	Within its scope of responsibilities conferred under Subsection (2), the Authority;	Functional	No Relationship	N/A	N/A	N/A	0	
V.25.38(4)(a)	Section 38	shall have powers to make recommendations for new regulations and for the amendment of legislation pertaining to the processing of personal	Functional	No Relationship	N/A	N/A	N/A	0	
V.25.38(4)(b)	Section 38	shall publish a report on its activities each year, by 31 March, and shall present this report to Parliament;	Functional	No Relationship	N/A	N/A	N/A	0	
V.25.38(4)(c)	Section 38	shall make recommendations in general, or to specific controllers;	Functional	No Relationship	N/A	N/A	N/A	0	
V.25.38(4)(d)	Section 38	shall give an opinion on special and ad hoc disclosure lists prescribed mandatory by this Act relating to the activities of the given body with public	Functional	No Relationship	N/A	N/A	N/A	0	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
V.25.38(4)(e)	Section 38	shall collaborate with the bodies and persons defined in specific other legislation to represent Hungary in the joint data protection supervisory bodies of the European Union;	Functional	No Relationship	N/A	N/A	N/A	0	
V.25.38(4)(f)	Section 38	organize the conference of internal data protection officers;	Functional	No Relationship	N/A	N/A	N/A	0	
V.25.38(4)(g)	Section 38	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
V.25.38(4)(h)	Section 38	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
V.25.38(5)	Section 38	The Authority is an independent body that is subject to Hungarian law only, it may not be instructed in its official capacity, shall operate independent	Functional	No Relationship	N/A	N/A	N/A	0	
V.26	Budget and financial management of the Authority	The Authority is a central budgetary body with chapter rights, whose budget constitutes an independent heading within the National Assembly's budget chapter. The main totals of the Authority's annual budget expenditure and revenue may not be reduced by the Government below the	Functional	No Relationship	N/A	N/A	N/A	0	
V.27	President of the Authority	The Authority is led by a President appointed by the President of the Republic on the proposal of the Prime Minister from among Hungarian citizens who hold a legal degree, are eligible for election as a member of the National Assembly, and have at least ten years of professional experience in proceedings related to data protection or freedom of information, or hold academic qualifications in one of these fields. The President's mandate lasts nine years and may not be renewed.	Functional	No Relationship	N/A	N/A	N/A	0	
V.28	Vice-President of the Authority	The President of the Authority is assisted by two Vice-Presidents appointed for an indefinite period. The Vice-President must satisfy the conditions prescribed for appointment of the President of the Authority, except that professional experience in procedures affecting data protection or freedom of information may be at least five years. The President of the Authority exercises employer rights over the Vice-Presidents.	Functional	No Relationship	N/A	N/A	N/A	0	
V.29	Staff of the Authority	The President of the Authority exercises employer rights over the civil servants and employees of the Authority. Civil servants and employees of the Authority shall comply with applicable civil service and employment legislation, subject to the exceptions provided by this Act.	Functional	No Relationship	N/A	N/A	N/A	0	
VI	PROCEEDINGS OF THE AUTHORITY	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
VI.30	Investigation by the Authority	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
VI.30.52	Section 52	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
VI.30.52(1)	Section 52	Any person shall have the right to notify the Authority and request an investigation alleging an infringement relating to his or her personal data or	Functional	No Relationship	N/A	N/A	N/A	0	
VI.30.52(2)	Section 52	The Authority's investigations ensuing shall not be treated as administrative proceedings, and shall not fall within the scope of the Act on the General Rules of Administrative Proceedings.	Functional	No Relationship	N/A	N/A	N/A	0	
VI.30.52(3)	Section 52	Having submitted a notification to the Authority may not entail any discrimination against the notifier. The Authority may reveal the person of the notifier only if the inquiry cannot be carried out otherwise. If so	Functional	No Relationship	N/A	N/A	N/A	0	
VI.30.52(4)	Section 52	The Authority shall carry out the investigation free of charge; the costs thereof shall be advanced and borne by the Authority.	Functional	No Relationship	N/A	N/A	N/A	0	
VI.30.53	Section 53	The Authority shall, with the exceptions set out in subsections (2) and (3), be obliged to examine the notification on its merits. The Authority may	Functional	No Relationship	N/A	N/A	N/A	0	
VI.30.54	Section 54	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
VI.30.54(1)	Section 54	In the course of that investigation, the Authority:	Functional	No Relationship	N/A	N/A	N/A	0	
VI.30.54(1)(a)	Section 54	shall have powers to inspect all documents of the controller inspected, presumed to have any bearing on the case at hand, and may request	Functional	No Relationship	N/A	N/A	N/A	0	
VI.30.54(1)(b)	Section 54	shall be given access to any data processing operation presumed to have any bearing on the case at hand, and shall be authorized to enter any premises where data processing takes place,	Functional	No Relationship	N/A	N/A	N/A	0	
VI.30.54(1)(c)	Section 54	shall have the right to request information from the controller inspected, and from any employee or associate of the controller in writing or verbally,	Functional	No Relationship	N/A	N/A	N/A	0	
VI.30.54(1)(d)	Section 54	shall have the right to request information in writing from any organization or person presumed to have any connection to the case at hand, and	Functional	No Relationship	N/A	N/A	N/A	0	
VI.30.54(1)(e)	Section 54	may request the head of the supervisory body of the data controller authority to conduct an investigation.	Functional	No Relationship	N/A	N/A	N/A	0	
VI.30.54(2)	Section 54	The data controller inspected and the organization or person involved in the case at hand shall comply with the Authority's request under	Functional	No Relationship	N/A	N/A	N/A	0	
VI.30.54(3)	Section 54	The person asked for information according to Paragraphs c) and d) of Subsection (1) may refuse to comply if:	Functional	No Relationship	N/A	N/A	N/A	0	
VI.30.54(3)(a)	Section 54	the person affected by the notification underlying the Authority's proceedings is his close relative or former spouse by definition of the Act	Functional	No Relationship	N/A	N/A	N/A	0	
VI.30.54(3)(b)	Section 54	giving the information would implicate himself, or his close relative or former spouse defined in the Act on the General Rules of Administrative Proceedings in the commission of a crime, as regards the question related	Functional	No Relationship	N/A	N/A	N/A	0	
VI.30.55	Section 55	Within two months from the official initiation of the investigation or from the day following receipt of the notification, the Authority shall: a) establish that an infringement has occurred or that there is a direct risk of infringement in relation to the exercise of rights defined in the GDPR and	Functional	No Relationship	N/A	N/A	N/A	0	
VI.30.56	Section 56	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
VI.30.56(1)	Section 56	Where the Authority considers that any infringement relating to personal data or concerning the exercise of the rights of access to public	Functional	No Relationship	N/A	N/A	N/A	0	
VI.30.56(2)	Section 56	The controller - if in agreement - shall take the measures indicated in the notice referred to in Subsection (1) without delay, and shall inform the Authority concerning the measures it has taken, or - if in disagreement - of its argument within thirty days from the date of receipt of the notice.	Functional	No Relationship	N/A	N/A	N/A	0	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
VI.30.56(3)	Section 56	If the data controller authority has a supervisory body, the Authority - if the notice referred to in Subsection (1) failed to obtain satisfaction - may present a recommendation to the controller's supervisory body, of which the controller has to be notified concurrently. The Authority may also present a recommendation directly, without sending a notice to the	Functional	No Relationship	N/A	N/A	N/A	0	
VI.30.56(4)	Section 56	The supervisory body shall notify the Authority in writing of its position concerning the recommendation as to merits, or on the measures taken within thirty days from the date of receipt of the recommendation.	Functional	No Relationship	N/A	N/A	N/A	0	
VI.30.57	Section 57	If the Authority finds in its investigation that an infringement or its direct risk is attributable to an unnecessary, unclear or inappropriate provision of a legal rule or public law regulatory instrument, or to a gap or deficiency in the legal regulation of data processing issues, the Authority shall make a	Functional	No Relationship	N/A	N/A	N/A	0	
VI.30.58	Section 58	If the infringement has not been remedied or the direct risk of infringement has not been eliminated on the basis of the notice or recommendation under Section 56, the Authority shall decide on the further necessary measures within thirty days of the expiry of the information deadline. The Authority may decide to initiate administrative data protection proceedings under Section 60 or to apply to a court.	Functional	No Relationship	N/A	N/A	N/A	0	
VI.31	The Authority's report	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
VI.31.59	Section 59	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
VI.31.59(1)	Section 59	The Authority may draw up a report on the findings of an investigation conducted on basis of notification in a case where the Authority did not	Functional	No Relationship	N/A	N/A	N/A	0	
VI.31.59(2)	Section 59	The report shall contain the facts revealed by the investigation, and the resulting findings and conclusions.	Functional	No Relationship	N/A	N/A	N/A	0	
VI.31.59(3)	Section 59	The Authority's report shall be public. The President of the Authority shall classify the report if it contains any classified information, or shall confirm	Functional	No Relationship	N/A	N/A	N/A	0	
VI.31.59(4)	Section 59	The report made by the Authority on the examination of the activities of bodies authorized for using secret service means and methods may not contain any data or information that may suggest any covert investigation conducted by these bodies in a given case.	Functional	No Relationship	N/A	N/A	N/A	0	
VI.31.59(5)	Section 59	The Authority's report may not be contested in court or before any other authority.	Functional	No Relationship	N/A	N/A	N/A	0	
VI.32	Administrative proceedings for data	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
VI.32.60	Section 60	In order to enforce the right to protection of personal data, the Authority shall initiate administrative data protection proceedings upon the request of the data subject, and may initiate such proceedings ex officio. A request	Functional	No Relationship	N/A	N/A	N/A	0	
VI.32.61	Section 61	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
VI.32.61(1)	Section 61	In its resolution adopted in administrative proceedings for data protection, the Authority may:	Functional	No Relationship	N/A	N/A	N/A	0	
VI.32.61(1)(a)	Section 61	order the rectification of any personal data that is deemed inaccurate,	Functional	No Relationship	N/A	N/A	N/A	0	
VI.32.61(1)(b)	Section 61	order the blocking, erasure or destruction of personal data processed unlawfully,	Functional	No Relationship	N/A	N/A	N/A	0	
VI.32.61(1)(c)	Section 61	prohibit the unlawful control or process of personal data,	Functional	No Relationship	N/A	N/A	N/A	0	
VI.32.61(1)(d)	Section 61	prohibit the transfer of personal data to other countries,	Functional	No Relationship	N/A	N/A	N/A	0	
VI.32.61(1)(e)	Section 61	order the information of the data subject, if it was refused by the data controller unlawfully, and	Functional	No Relationship	N/A	N/A	N/A	0	
VI.32.61(1)(f)	Section 61	impose a fine.	Functional	No Relationship	N/A	N/A	N/A	0	
VI.32.61(2)	Section 61	The Authority may order publication of its resolution, indicating the identification data of the controller as well, where this is deemed	Functional	No Relationship	N/A	N/A	N/A	0	
VI.32.61(3)	Section 61	The amount of the financial penalty imposed pursuant to Paragraph f) of Subsection (1) shall be between one hundred thousand and ten million forints.	Functional	No Relationship	N/A	N/A	N/A	0	
VI.32.61(4)	Section 61	The Authority shall decide whether or not to impose a fine, and the amount of the penalty taking into account all circumstances of the case, such as in particular the number of data subjects affected by the infringement, the	Functional	No Relationship	N/A	N/A	N/A	0	
VI.32.61(5)	Section 61	Before the expiry of the deadline for filing a petition for judicial review, and if judicial review has been requested, before the final court decision the data affected by the processing operation in dispute may not be erased and may not be destroyed.	Functional	No Relationship	N/A	N/A	N/A	0	
VI.33	Administrative proceedings for the control of classified data	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
VI.33.62	Section 62	If, based on the Authority's investigation or otherwise, it is probable that the classification of national classified information or the repetition of the classification marking is unlawful, the Authority may initiate secrecy	Functional	No Relationship	N/A	N/A	N/A	0	
VI.33.63	Section 63	In its decision in secrecy supervisory administrative proceedings, the Authority: a) in the event of a finding that the rules on classification of national classified information have been violated, shall call upon the classifier to change the classification level or validity period in accordance with the legislation, or to terminate the classification; or shall establish that the classification complies with the legislation; b) in the event that classification was lawful, shall establish that fact.	Functional	No Relationship	N/A	N/A	N/A	0	
VI.34	Litigation Options for the Authority	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
VI.33.64	Section 64	If the controller fails to comply with the notice issued under Section 56(1), the Authority may, within thirty days of the expiry of the information	Functional	No Relationship	N/A	N/A	N/A	0	
VI.35	Data protection register	N/A	Functional	No Relationship	N/A	N/A	N/A	0	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
VI.35.65	Section 65	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
VI.35.65(1)	Section 65	The Authority shall maintain official records on the processing operations of controllers in respect of personal data (hereinafter referred to as "data the purpose of data processing;	Functional	No Relationship	N/A	N/A	N/A	0	
VI.35.65(1)(a)	Section 65		Functional	No Relationship	N/A	N/A	N/A	0	
VI.35.65(1)(b)	Section 65	the legal basis of data processing;	Functional	No Relationship	N/A	N/A	N/A	0	
VI.35.65(1)(c)	Section 65	scope of data subject;	Functional	No Relationship	N/A	N/A	N/A	0	
VI.35.65(1)(d)	Section 65	description of the data pertaining to the data subjects;	Functional	No Relationship	N/A	N/A	N/A	0	
VI.35.65(1)(e)	Section 65	the source;	Functional	No Relationship	N/A	N/A	N/A	0	
VI.35.65(1)(f)	Section 65	the duration of processing;	Functional	No Relationship	N/A	N/A	N/A	0	
VI.35.65(1)(g)	Section 65	the categories of data transferred, the recipients and the grounds for transfer, including transfers made to third countries;	Functional	No Relationship	N/A	N/A	N/A	0	
VI.35.65(1)(h)	Section 65	name and address of the data controller and the data processor, the place where records are kept and/or where processing is carried out, and the the nature of the data process technology used;	Functional	No Relationship	N/A	N/A	N/A	0	
VI.35.65(1)(i)	Section 65		Functional	No Relationship	N/A	N/A	N/A	0	
VI.35.65(1)(j)	Section 65	the name of and contact details of the internal data protection officer, where applicable.	Functional	No Relationship	N/A	N/A	N/A	0	
VI.35.65(2)	Section 65	As regards national security agencies, the data protection register shall indicate the name and address of the given national security agency, and	Functional	No Relationship	N/A	N/A	N/A	0	
VI.35.65(3)	Section 65	The Authority's data protection register shall not cover operations:	Functional	No Relationship	N/A	N/A	N/A	0	
VI.35.65(3)(a)	Section 65	concerning the data of the data controller's employees or members, students engaged under kindergarten education agreement, or under carried out in accordance with the internal rules of the recognized church;	Functional	No Relationship	N/A	N/A	N/A	0	
VI.35.65(3)(b)	Section 65		Functional	No Relationship	N/A	N/A	N/A	0	
VI.35.65(3)(c)	Section 65	that concerns the personal data of a person undergoing medical treatment, for the purposes of health care and preventive measures or for where it contains information concerning the provision of social and other benefits to the data subject;	Functional	No Relationship	N/A	N/A	N/A	0	
VI.35.65(3)(d)	Section 65		Functional	No Relationship	N/A	N/A	N/A	0	
VI.35.65(3)(e)	Section 65	where it contains the personal data of persons implicated in an official regulatory, public prosecutor or court proceeding to the extent required for where it contains personal data for official statistical purposes, provided there are adequate guarantees that the verification of the link between the data and the data subject is definitively severed in such a way that the data subject is no longer identifiable in accordance with the relevant legislation, where it concerns the data of a media content provider defined by the Act on Media Services and on the Mass Media, which are used solely for its own information activities;	Functional	No Relationship	N/A	N/A	N/A	0	
VI.35.65(3)(g)	Section 65		Functional	No Relationship	N/A	N/A	N/A	0	
VI.35.65(3)(h)	Section 65	if it serves the purposes of scientific research, and if the data is not made available to the public;	Functional	No Relationship	N/A	N/A	N/A	0	
VI.35.65(3)(i)	Section 65	where it concerns documents deposited in archive.	Functional	No Relationship	N/A	N/A	N/A	0	
VI.35.65(4)	Section 65	The data protection register shall be open to the general public; it may be inspected by any person, including taking notes.	Functional	No Relationship	N/A	N/A	N/A	0	
VI.35.66	Section 66	The Authority shall refuse to fulfil a request for mutual legal assistance from a third country authority or an international organization, and shall	Functional	No Relationship	N/A	N/A	N/A	0	
VI.35.67	Section 67	The Authority cooperates with the supervisory authorities of EEA states in the ways defined in binding legal acts of the European Union, in particular within the framework of mutual assistance under Article 61 of the GDPR and Article 50 of Directive (EU) 2016/680. The Authority may participate in joint operations with the supervisory authority of an EEA state in the manner defined in Article 62 of the GDPR.	Functional	No Relationship	N/A	N/A	N/A	0	
VI.35.68	Section 68	If it is necessary to obtain data, documents or to conduct other procedural acts to fulfil a request from a third country or another EEA state authority, or an international organization, not directly related to a pending procedure of the Authority, the Authority shall carry out an official inspection for this purpose. The inspection shall conclude with the handing over of the evidence obtained to the requesting authority.	Functional	No Relationship	N/A	N/A	N/A	0	
VI.36	Data protection audit	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
VI.36.69	Section 69	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
VI.36.69(1)	Section 69	The data protection audit is a service provided by the Authority designed to evaluate and assess data processing operations in progress or proposed Data protection audits are conducted by the Authority at the data controller's request. For the data protection audit an administrative service fee shall be charged in the amount decreed by the relevant minister.	Functional	No Relationship	N/A	N/A	N/A	0	
VI.36.69(2)	Section 69		Functional	No Relationship	N/A	N/A	N/A	0	
VI.36.69(3)	Section 69	The Authority shall record the results of the data protection audit in an audit report. The audit report may also contain recommendations for the data controller. The audit report shall be considered public, unless the controller requests otherwise.	Functional	No Relationship	N/A	N/A	N/A	0	
VI.36.69(4)	Section 69	The data protection audit shall not exclude the exercise of the Authority's other competencies defined in this Act.	Functional	No Relationship	N/A	N/A	N/A	0	
VI.37	Initiating criminal, infringement and	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
VI.37.70	Section 70	If the Authority detects a suspicion of a criminal offence in the course of its proceedings, it shall initiate criminal proceedings at the body authorized to initiate them. If the Authority detects a reasonable suspicion of a	Functional	No Relationship	N/A	N/A	N/A	0	
VI.38	Data processing and confidentiality	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
VI.38.71	Section 71	In the course of its proceedings, the Authority may process, to the extent and for the duration necessary, all personal data and data classified as	Functional	No Relationship	N/A	N/A	N/A	0	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
VII	CLOSING PROVISIONS	The Closing Provisions of Act CXII of 2011 grant the Government delegated legislative authority to determine detailed rules of electronic publication of data of public interest, establish cost reimbursement rules for data requests, and prescribe special data processing rules for specific sectors. They also set out enforcement provisions delegating powers to the relevant Minister, transitional provisions for cases pending at entry into force, and the date of entry into force of the Act and its amendments.	Functional	No Relationship	N/A	N/A	N/A	0	